

opposing evidence is also **denied**.

5. 9:00 AM CASE NUMBER: C23-02335
CASE NAME: KROPP V SRVUSD
HEARING ON SUMMARY MOTION
FILED BY: SAN RAMON VALLEY UNIFIED SCHOOL DISTRICT
TENTATIVE RULING:

San Ramon Valley High School (“SRVHS”) and San Ramon Valley Unified School District (“District,” or collectively, “District Defendants”), move for summary judgment on plaintiff’s Second Amended Complaint (“SAC”); or, in the alternative, summary adjudication as to each cause of action raised against them. The motion for summary judgment is **granted**, as discussed below. District Defendants shall prepare an appropriate form of judgment, separate from any order on this motion, and circulate for approval as to form.

I. Background

Plaintiff, Spencer Kropp, alleges that he was a fifteen-year-old member of the JV football team who incurred injuries on August 18, 2022, around 5pm, when he fell off the bumper of another football player’s truck in the school parking lot after practice. (SAC, ¶¶11-13, 23-25.)

Plaintiff had been loading his gear into the truck driven by defendant Andrew Nicholson, when Nicholson accelerated prior to plaintiff moving away from the vehicle, causing plaintiff to fall face first and sustain head injuries. (SAC, ¶¶23-25.) The coaches had already departed the school on their way to a nearby pizzeria for a team dinner following practice. (See SAC, ¶97.) The dinner was a weekly activity after practice that was “team-sponsored” and “school-sanctioned.” (SAC, ¶¶11.) Typically, some players would walk to the restaurant after loading their gear into other players’ vehicles, while other players were transported by their peers, such as Andrew Nicholson, who owned vehicles. (SAC, ¶24.)

The SAC alleges plaintiff told his coaches about his injury upon arriving at the pizzeria, but they ignored plaintiff and his objective indications of head injury (cuts, scrapes, bruising, and swelling). (SAC, ¶77.) The coaches failed to prevent him from participating in a scrimmage the following day, and in a practice the day after the scrimmage. (SAC, ¶¶77-79.) The coaches failed to

have plaintiff evaluated by a licensed health care provider, to place him into a concussion protocol, and to impose certain return-to-play requirements. Instead they told him to “push through it.” (See SAC, ¶¶71-77.) Plaintiff alleges he proceeded to incur further injuries when he participated in the team’s scrimmage the following day, and again during practice the day following the scrimmage, on August 20, 2022, where he vomited during practice. (SAC, ¶¶74-78) On August 22, 2022, plaintiff was diagnosed with a concussion “as a result of the repeated and cumulative head injuries he sustained” on August 18th, 19th, and 20th. (SAC, ¶75.)

After the District rejected his Government Code Claim, plaintiff brought suit against District Defendants as well as several individual defendants, in September of 2023.

Following the sustaining of a demurrer to the third cause of action in the SAC, the causes of action against District Defendants include the fourth (premised on negligence and an alleged violation of Education Code, § 49475), fifth (for failure to hold pupils to a strict account for their conduct: automobile use), sixth and seventh (for violations of the Child Abuse and Neglect Reporting Act).

District Defendants filed this motion, asserting entitlement to summary judgment or, in the alternative, adjudication on each cause of action. They support the motion with a compendium of evidence that includes deposition testimony and declarations, as well as a separate statement of undisputed material facts (“SSUMF”) and a memorandum of points and authorities.

Plaintiff has filed a non-opposition to the motion.

II. Undisputed Facts

In support of the motion, District Defendants have offered the following facts, which plaintiff does not dispute:

District is a public school district. (SSUMF, Fact. No. 1.) SRVHS is one of the school sites operated by the District. (SSUMF, Fact. No. 2.) The District employed Coach Bowen as an assistant coach of the JV Team for the 2022 season. (SSUMF, Fact. No. 3.) The District employed Coach Yi, a paramedic with 25 years of experience, as an assistant coach of the SRVHS JV football team for the 2022 season. (SSUMF, Fact. No. 4.) Plaintiff and his mother were provided with a copy of the California Interscholastic Federation “State Concussion

Information Sheet,” review of which they acknowledged on August 5, 2022. (SSUMF, Fact. Nos. 5-6.) The sheet provided, among other information, that if concussions are not “recognized and managed the right way, they may result in problems including brain damage and even death.” (SSUMF, Fact. No. 7.)

The District employed the Coaches exclusively as classified employees during the 2022 football season. (SSUMF, Fact. Nos. 8-11.)

While plaintiff was standing on the rear bumper of the truck in question and in the process of throwing his backpack into the bed of the vehicle, his teammate A.J. Nicholson “violent[ly] accelerat[ed]” the truck forward. (SSUMF, Fact. No. 13.) Plaintiff later recounted the accident to teammates, noting that, “just for no reason A.J. took off...” (SSUMF, Fact. No. 14.) The injury in question occurred in an SRVHS parking lot after the JV Team practice on August 18, 2022. (SSUMF, Fact. No. 15.) The SRVHS campus parking lot in question spans several thousand square feet. (SSUMF, Fact. No. 12.)

As a result of the accident plaintiff immediately suffered a lacerated lower lip, scrapped knees, a scrapped torso, and felt a little dizzy and in shock. (SSUMF, Fact. No. 16.) Plaintiff does not allege that A.J. caused him any additional injuries after the alleged parking lot incident. (SSUMF, Fact. No. 17.) The total amount of time the truck in question was stopped immediately prior to the accident was approximately 20 seconds. (SSUMF, Fact. No. 18.)

No coaches were present in the parking lot at the time of the accident in question and none of their contractual job duties included supervising SRVHS parking lots after practices. (SSUMF, Fact. Nos. 19-23.) After the coaches learned of the accident in question, they sought out plaintiff and asked him for his version of the accident in question. (SSUMF, Fact. Nos. 24-25.) Plaintiff told the coaches that he had hit his head on the ground during the accident in question. (SSUMF, Fact. No. 26.) The coaches then conducted an examination of plaintiff and determined he would be “just fine.” (SSUMF, Fact. Nos. 27-28.) The coaches did not see anything that made them suspect that Plaintiff had suffered anything more than superficial abrasions to his skin and lip. (SSUMF, Fact. No. 29.)

During school on Friday, August 19, 2022, plaintiff felt “super tired,” unfocused, and sensitive to light; in addition to still feeling head pressure, nausea, and dizziness. (SSUMF, Fact. No. 30.) On the day of the scrimmage in question, prior to the game, the coaches asked plaintiff if he was fit enough to

play. (SSUMF, Fact. No. 31.) Plaintiff responded in the affirmative and did not tell the coaches about any of the symptoms he was feeling. (SSUMF, Fact. Nos. 32-33.)

On the day of the scrimmage in question, prior to the game, none of the coaches saw anything that made them suspect plaintiff had suffered a concussion the previous day. (SSUMF, Fact. Nos. 34-36.) They also did not see anything during or after the game to make them suspect plaintiff had suffered a concussion. (SSUMF, Fact. Nos. 37-40.)

Plaintiff alleges that he started suffering headaches at some point at Primo's, and started suffering nausea later that night at home. (SSUMF, Fact. No. 42.) On the day of the accident in question, while at Primo's, plaintiff did not tell the coaches of any neurological or mental symptoms. He only informed them of his physical symptoms. (SSUMF, Fact. No. 43.)

On Saturday, August 20, 2022, plaintiff woke up with the same symptoms as the previous day, plus a "beating headache." (SSUMF, Fact. No. 44.) Coach Bowen was the only coach who attended the practice on Saturday, August 20, 2022. (SSUMF, Fact. No. 45.) Plaintiff did not speak to Coach Bowen prior to the practice on Saturday, August 20, 2022, but he alleges that after he vomited during a running drill, he told Coach Bowen, "I can't practice anymore," and "I don't feel good." (SSUMF, Fact. Nos. 46-47.)

Coach Bowen testifies that players often vomit during conditioning drills, and often plead that they do not have the ability to finish the exercise for various reasons. (SSUMF, Fact. No. 48.) After the conditioning practice on Saturday, August 20, 2022, plaintiff did not again physically participate in any football activities. (SSUMF, Fact. No. 49.)

On August 5, 2022, Plaintiff's mother executed a copy of the "Parent/Legal Guardian Consent, Release & Waiver." (SSUMF, Fact. No. 50.) The "Parent/Legal Guardian Consent, Release & Waiver" executed by Plaintiff's mother read, in part: "...I understand and appreciate that there is a risk of serious and possibly permanent injury, including brain damage or death, to [Plaintiff] as a result of his/her engagement in [SRVHS sports] and, on behalf of [Plaintiff] and me, I KNOWINGLY AND FREELY ASSUME THOSE AND ALL OTHER RISKS, known and unknown, related to [Plaintiff's] engagement in [SRVH sports], including but not limited to RISKS ARISING FROM THE NEGLIGENCE OF OTHERS." (SSUMF, Fact. No. 51.) Plaintiff was a member of the JV Team during

the 2022 season. (SSUMF, Fact. No. 52.)

III. Standard

To be entitled to judgment as a matter of law, a defendant must show by admissible evidence that the action has no merit. (Code Civ. Proc., § 437c, subd. (a).) A defendant can meet this burden by demonstrating one or more elements cannot be established, or by showing a complete defense. (Code of Civ. Proc., § 437c, subd. (o).) The scope of the moving party's initial burden is "framed by the pleadings." (*Leyva v. Garcia* (2018) 20 Cal.App.5th 1095, 1102.) Once the moving defendant has met that burden, the burden shifts to the plaintiff to show via specific facts that a triable issue of material fact exists. (Code of Civil Procedure § 437c, subd. (p)(2).) A motion for summary adjudication may be made by itself or as an alternative to a motion for summary judgment and shall proceed in all procedural respects as a motion for summary judgment. (Code Civ. Proc., § 437c (f)(2).)

IV. Discussion

A. Failure to Exercise Reasonable Diligence (4th C/A)

This cause of action, which is essentially one for negligence, would require plaintiff to show a legal duty to use due care, a breach of such legal duty, and that the breach was the proximate or legal cause of the resulting injury. (*Ladd v. County of San Mateo* (1996) 12 Cal.4th 913, 917.) Any potential duty would be limited by what plaintiff set forth in his Government Code claim and his SAC.

District Defendants argue that under the above facts, (1) they had no duty to plaintiff pursuant to Education Code section 49475, as Judge Douglas previously determined in ruling on two demurrers, (2) there was also no duty to obtain written clearance from a health care provider before allowing plaintiff to return to play (the other potential avenue for claiming negligence, as described by Judge Douglas in the minute order dated May 9, 2025), and (3) public employees and their employers are immune from any liability arising from "misdiagnosing" an athlete as fit for physical activity.

For the reasons set forth in their memorandum of points and authorities, both District Defendants are entitled to judgment on the fourth cause of action under the undisputed facts.

B. Failure to Hold Pupils to a Strict Account for Their Conduct (Automobile

Use) (5th C/A)

This cause of action requires plaintiff to show the District Defendants are vicariously liable for the Coaches' breach of a mandatory duty pursuant to Education Code, § 44807, which requires "[e]very teacher in the public schools" to "hold pupils to a strict account for their conduct on the way to and from school, on the playgrounds, or during recess." As shown by the undisputed facts above, Coaches were classified employees, not teachers or other *certificated* employees that might be subject to the statute. Accordingly, there was no duty and District Defendants have shown entitlement to judgment on the fifth cause of action. While other grounds are raised (the statute only requires after-the-fact punishment and plaintiff's own admissions show there was no causation), the Court need not reach those arguments.

C. Remaining Causes of Action (6th and 7th Causes of Action Related to Child Abuse & Neglect Under the Penal Code)

District Defendants assert multiple arguments in favor of summary adjudication on the sixth and seventh causes of action. While most of the arguments have merit, the Court opts to dispose of these causes of action pursuant to the doctrine of assumption of risk.

As set forth in the case cited by District Defendants, "the evidence must disclose the injured person appreciated the particular risk involved. He does not assume any risk he does not know or appreciate. Stated another way, before the doctrine is applicable, the victim must have not only general knowledge of a danger, but must have knowledge of the particular danger, that is, knowledge of the magnitude of the risk involved." (*Brown v. El Dorado Union High School Dist.* (2022) 76 Cal.App.5th 1003, 1026.) The undisputed facts indicate plaintiff and his mother both reviewed and acknowledged a form containing information about concussions and warning that "if concussions are not recognized and managed the right way, they may result in problems including brain damage and even death." (SSUMF, Fact. Nos. 6-7.) The symptoms plaintiff experienced were precisely those warned about in the form, yet he failed to make his coaches aware of the full scope of his injuries at a time when it would have prompted them to take a different approach to his injuries. (See SSUMF, Fact Nos. 16, 30-33, 42-46.)

This acknowledgment, combined with the evidence presented on this motion, was sufficient to show, at least with respect to the District Defendants

and Coaches, that plaintiff assumed the risks associated with suffering a concussion and that District Defendants are entitled to judgment on these causes of action as a matter of law.

V. Conclusion

Because the evidence and argument presented by the District Defendants successfully shifts the burden to plaintiff to present triable disputes of material fact with respect to each of the thirteen issues, and plaintiff does not present any evidence or argument to the contrary, summary judgment is appropriate is granted with respect to the District Defendants.

6. 9:00 AM CASE NUMBER: C23-02335
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HEARING ON SUMMARY MOTION
FILED BY: BOWEN, BRAD
TENTATIVE RULING:

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I. Background

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Plaintiff had been loading his gear into the truck driven by defendant Andrew Nicholson, when Nicholson accelerated prior to plaintiff moving away from the vehicle, causing plaintiff to fall face first and sustain head injuries. (SAC, ¶¶23-25.) The coaches had already departed the school on their way to a nearby pizzeria for a team dinner following practice. (See SAC, ¶97.) The dinner was a weekly activity after practice that was “team-sponsored” and “school-sanctioned.” (SAC, ¶¶11.) Typically, some players would walk to the restaurant